

Smt. Reena W/O S C Tejes And vs S C Tejes S/O. S.R. Chandrashekar on 13 July, 2023

Author: Rajendra Badamikar

Bench: Rajendra Badamikar

-1-

NC: 2023:KHC-D:7155

CP No. 100066 of 2023

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH

DATED THIS THE 13TH DAY OF JULY, 2023

BEFORE

THE HON'BLE MR JUSTICE RAJENDRA BADAMIKAR

CIVIL PETITION NO. 100066 OF 2023

BETWEEN:

SMT. REENA W/O S.C.TEJES AND
D/O DEVENDRAPPA SHANKARAPPA BHAJANTRI,
AGE: 33 YEARS, OCC: NIL,
R/O: RAJAGOLAKARA BUILDING,
VEERABHADRA NAGAR,
JAIL COLONY,
BELAGAVI-590016

...PETITIONER

(BY SRI. MRUTYUNJAYA S.HALLIKERI, ADVOCATE)

AND:

S.C.TEJES S/O S.R. CHANDRASHEKAR
AGE: 37 YEARS,
OCC: ASST. MANAGER KPMG BENGALURU,

Digitally
signed by
SUJATA

R/O: NO.135, 2ND MAIN ROAD,

SUJATA SUBHASH

SUBHASH PAMMAR

PAMMAR Date:

2023.07.15

10:51:50 -

SESHADRIPURAM,

BENGALURU-560020.

0700

...RESPONDENT

(BY SRI. R.H.ANGADI, ADVOCATE)

THIS CIVIL PETITION IS FILED UNDER SECTION 24 OF CPC, PRAYING TO, WITHDRAWAL THE MATRIMONIAL CASE IN M.C. NO. 3647/2021 PENDING ON THE FILE OF HONBLE PRINCIPAL JUDGE, FAMILY COURT AT BENGALURU AND TRANSFER THE SAME TO THE COURT OF HONBLE PRINCIPAL JUDGE, FAMILY COURT, BELAGAVI, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

-2-

NC: 2023:KHC-D:7155

CP No. 100066 of 2023

ORDER

This petition is filed by the petitioner/wife under Section 24 of the Code of Civil Procedure, 1908 (for short, hereinafter referred to as 'CPC') for transferring of M.C.No.3647/2021 pending on the file of the learned Principal Judge, Family Court, Bengaluru to the learned Principal Judge, Family Court, Belagavi, for disposal of the case in accordance with law.

2. The brief factual matrix leading to the case are that the petitioner is legally wedded wife of respondent and their marriage was solemnized on 27.02.2020 at Belagavi and after the marriage, the petitioner and respondent lead their marital life in Bengaluru. Out of the said wedlock they are blessed with a daughter by name Srinika. It is alleged that subsequently the petitioner was subjected to ill-treatment and she was driven out of the house by the respondent/husband and hence, she was compelled to take shelter in her parental house at Belagavi. It is also alleged that she has also filed a NC: 2023:KHC-D:7155 complaint under the Provisions of Sections 498A, 504, 506 R/w Section 34 of IPC and Sections 3 and 4 of the Dowry Prohibition Act, 1961. It is further the case of the petitioner that meanwhile husband has filed a petition for dissolution of the marriage in M.C.No.3647/2021 on the file of the learned Principal Judge, Family Court, Bengaluru under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955. She asserted that she does not have any means and she is incapable of travelling 500 kmrs from Belagavi to Bengaluru to prosecute the matter. Hence, she has sought for transferring the matter. She has also contended that other proceedings initiated by her are also pending in Belagavi.

3. The respondent has appeared through his counsel and seriously objected the transfer petition on the ground that the parties resided together in Bengaluru lastly and merely petitioner is staying in Belagavi cannot be a ground for transfer and hence, he would seek for dismissal of the petition.

NC: 2023:KHC-D:7155

4. Having heard the arguments and perusing the records, it is evident that the marriage was solemnised on 27.02.2020 in Belagavi. Admittedly, the petitioner and respondent resided together in Bangaluru and out of the said wedlock a child is also born. However, the records disclose that subsequently due to certain differences, they separated and while the respondent/husband has initiated the proceedings for divorce, the petitioner/wife has also lodged a complaint under Section 498A of IPC regarding the dowry harassment and also under the Provisions of the Dowry Prohibition Act, 1961. It is further submitted by the learned counsel for the petitioner that initially the respondent had filed a petition under Section 9 of the Hindu Marriage Act, 1955, for Restitution of Conjugal Rights and the wife/petitioner was prepared to join his company, but he withdrew the same and then he filed this divorce petition. Admittedly, Belagavi is situated at a distance around 500 kmrs from Bangaluru. The petitioner claims that she is not having any sufficient means to travel NC: 2023:KHC-D:7155 Belagavi to Bangaluru. Further she is custodian of the child also.

5. Looking to these facts and circumstances, in my considered opinion it is just and proper to transfer M.C.No.3647/2021 pending on the file of the learned Principal Judge, Family Court, Bangaluru to the learned Principal Judge, Family Court, Belagavi, wherein other proceedings are going on and the respondent is already appearing. Hence, the petition needs to be allowed. Accordingly, I proceed to pass the following:

ORDER The petition is allowed.

M.C.No.3647/2021 pending on the file of the learned Principal Judge, Family Court, Bangaluru, is withdrawn and transferred to the learned Principal Judge, Family Court, Belagavi, for disposal in accordance with law.

Since the parties are appearing before the Court, they are directed to appear before the learned Principal NC: 2023:KHC-D:7155 Judge, Family Court, Belagavi on 21.08.2023 at 10.30 a.m. without waiting for any notice.

Learned Principal Judge, Family Court, Bangaluru, is directed to transmit the entire records to the learned Principal Judge, Family Court, Belagavi, for trial of the matter at the earliest.

Send the copy of this order to both the Courts below for compliance.

Sd/-

JUDGE SSP